

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KHALIL MCINTOSH and JAYLYN SANTIAGO,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER HENRY
HENRIQUEZ, Shield No. 8780, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 16, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.

CAITLIN ROBIN AND ASSOCIATES PLLC

Attorney for Plaintiffs

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New York, New York 10004

(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER HENRY HENRIQUEZ, SHIELD NO. 8780, 75th Precinct, 1000 Sutter
Avenue, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KHALIL MCINTOSH and JAYLYN SANTIAGO,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER HENRY
HENRIQUEZ, Shield No. 8780, and NYPD POLICE
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs KHALIL MCINTOSH and JAYLYN SANTIAGO, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 26, 2021, at approximately 2:00 p.m., plaintiffs KHALIL MCINTOSH and JAYLYN SANTIAGO, while lawfully in the vicinity of Forbell Street and Loring Avenue in Brooklyn, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiffs were subjected to excessive force, assault, and battery, and were shoved, slammed, and dragged by the defendant officers, causing them to suffer physical, mental, and emotional injury. Plaintiffs were then unlawfully imprisoned at the 75th Precinct Police Station for approximately 24 hours before they were released on their own recognizances. Plaintiffs were denied the right to due process and a fair trial for false charges, all of which were thereafter dismissed and sealed. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, assaulted, battered, falsely arrested, falsely imprisoned, and denied plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KHALIL MCINTOSH (“Mr. McIntosh”) is a resident of the state of New York.

3. Plaintiff JAYLYN SANTIAGO (“Ms. Santiago”) is a resident of the state of New York.

4. NYPD OFFICER HENRY HENRIQUEZ, Shield No. 8780, is and was at all times an officer, employee, and agent of the New York City Police Department.

5. NYPD OFFICER HENRY HENRIQUEZ, Shield No. 8780, was at all times relevant herein, assigned to the 75th Precinct.

6. NYPD OFFICER HENRY HENRIQUEZ, Shield No. 8780, is being sued in his individual and official capacities.

7. NYPD Police Officers John/Jane Doe Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD Police Officers John/Jane Doe Numbers 1-10 were at all times relevant herein, assigned to the 75th Precinct.

9. NYPD Police Officers John/Jane Doe Numbers 1-10 are being sued in their individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed timely Notices of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiffs KAHLIL MCINTOSH and JAYLYN SANTIAGO testified at a hearing held pursuant to General Municipal Law Section 50-H on June 9, 2021.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On February 26, 2021, at approximately 2:00 P.M., Plaintiffs were lawfully present in the vicinity of Forbell Street and Loring Avenue in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, searched, assaulted, battered, and falsely arrested Plaintiffs without probable cause or legal justification.

18. On the afternoon of the relevant incident, Mr. McIntosh and Ms. Santiago had parked their vehicle outside a deli located near Forbell Street and Loring Avenue; Mr. McIntosh went inside the store and left Ms. Santiago sitting in the vehicle with their dog.

19. Mr. McIntosh legally purchased a bottle of water in the deli and got back into his car.

20. As Mr. McIntosh was re-entering the vehicle, one of the Defendant Officers approached the vehicle and said, "This car looks stolen, where is the documentation for it?" and then called for backup on his radio.

21. Plaintiff, confused because the car was legally his, asked the Defendant Officer, "Why do you need the info for the car, it's my car?"

22. The Defendant Officers, not liking the answer provided by Plaintiff McIntosh, opened the car door, and immediately tried to pull Plaintiff out of the car.

23. No lawful order was given to exit the vehicle before the Defendants ripped Plaintiff out of the vehicle.

24. The Defendant officers dragged Mr. McIntosh out of his vehicle by his legs, banging his head on the frame in the process, and proceeded to throw him to the ground and slam his head onto the concrete.

25. Ms. Santiago asked the defendant officers why this was happening to her boyfriend, at which point she was also dragged out by the defendant officers and slammed up against the outside of the vehicle.

26. It was at this time that defendant officers began to arrest the plaintiffs.

27. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

28. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

29. Plaintiffs did not resist arrest.

30. Both plaintiffs were subject to an illegal pat-down search by defendant officers.

31. At no point did defendant officers recover any drugs, weapons, or other illegal contraband from either of the Plaintiffs or from a location that was in either Plaintiffs' possession, custody, or control.

32. Both plaintiffs were then placed in the back of an NYPD vehicle and transported against their will to the 75th Precinct where they were unlawfully fingerprinted, photographed, and placed in a holding cell.

33. While in custody at the 75th Precinct, plaintiffs repeatedly requested professional medical treatment for their injuries as they were in severe pain, but they were repeatedly ignored by defendant officers.

34. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that plaintiffs committed a crime.

35. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that they were guilty of Resisting Arrest and Disorderly Conduct.

36. On February 27, 2021, after approximately 12 hours in custody, Plaintiff Santiago was released from custody at the 75th Precinct with a desk appearance ticket.

37. Plaintiff McIntosh was transferred from the 75th Precinct to Kings County Central Bookings, where he was arraigned in front of a Judge on false charges and released on his own recognizance.

38. Thereafter, both plaintiffs were treated for the injuries inflicted upon them by defendant officers. Among other injuries, Ms. Santiago had a dislocated kneecap; Mr. McIntosh's leg had been pulled out of socket.

39. The charges which were falsely made against Mr. Davis by the defendant officers were dismissed on or around April 2, 2021.

40. The charges which were falsely made against Ms. Santiago by the defendant officers were dismissed outright and sealed on or around May 7, 2021.

41. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

42. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

43. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

58. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search Plaintiffs.

61. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Assault

65. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

67. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, economic, and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

71. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. Defendants, their agents, servants, and employees, acting within the scope of their employment, willfully and maliciously battered Plaintiffs when they, in a hostile and/or offensive manner, dragged them by their limbs, and violently slammed them against the vehicle and/or concrete, with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

73. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

76. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights**Denial of Right to Fair Trial/Due Process**

77. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. In withholding/creating false evidence against Plaintiffs KHALIL MCINTOSH and JAYLYN SANTIAGO, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

82. As a result of the foregoing, Plaintiffs KHALIL MCINTOSH and JAYLYN SANTIAGO sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights**

86. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The use of excessive force by defendants by, amongst other things, tightly handcuffing, dragging, slamming into nearby vehicles, and throwing Plaintiffs to the ground, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

89. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Despite being aware that Plaintiffs were suffering through severe pain and required additional treatment from medical professionals, defendants delayed Plaintiffs' medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

91. This delay in medical treatment for Plaintiffs' injuries resulted in pain and injury that could have been prevented had Plaintiffs received treatment in a timely manner.

92. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Negligence

96. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants owed a duty of care to Plaintiffs.

98. To the extent defendants claim that the injuries to the plaintiffs by the defendant officers was unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by banging Mr. McIntosh's head against the car frame, dragging him by his leg and pulling it out of socket, as well as by dragging Ms. Santiago out of the car and throwing her against the side, dislocating her knee.

99. As a direct and proximate result of such acts, defendants deprived the plaintiffs of their rights under the laws of the State of New York.

100. All of the foregoing occurred without any fault or provocation by Plaintiffs.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

104. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, KHALIL MCINTOSH and JAYLYN SANTIAGO. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

106. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

110. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

112. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene

113. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights, had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to unlawful search, battery, and other physical constraints.

117. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Malicious Prosecution

121. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs 1 through 120 with the same force and effect as if more fully set forth at length herein.

122. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

123. Defendants commenced and continued a criminal proceeding against plaintiff JAYLYN SANTIAGO.

124. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which they were prosecuted.

125. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

126. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

127. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

128. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

129. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

JURY DEMAND

130. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs KHALIL MCINTOSH and JAYLYN SANTIAGO demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 16, 2021

By: *Caitlein Robin*
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiffs
30 Broad Street Suite 702
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(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER HENRY HENRIQUEZ, SHIELD NO. 8780, 75th Precinct; 1000 Sutter Avenue, Brooklyn, NY 11208

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 16, 2021


CAITLIN ROBIN